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File No.: EXP202211229

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 20, 2022. The complaint is directed against the entity DELSA ALQUILERES, S.L. with NIF B93178846 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they reside in a building where the complained party has a dwelling and that they have installed, at the entrance to said dwelling, a surveillance camera, which, due to its orientation, is capable of capturing images of common areas of the community landing where the dwelling is located, without prior authorization from the Community of Property Owners.

They provide an image of the camera's location (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party on 10/24/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was delivered in a timely manner as evidenced by the acknowledgment of receipt in the file.

THIRD: On January 20, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question within the framework of the current File No. EXP202211229, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following details:

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Facts according to the statements of the complainant:

The complainant states that they reside in a building where the complained party has a dwelling, and that they have installed a surveillance camera which, due to its orientation, is capable of capturing images of common areas of the community landing where the dwelling is located, without prior authorization from the Community of Property Owners. They provide images of the camera's location at the time of the complaint and identify B.B.B. as responsible, understanding that they are the owner of the property where the camera subject to their complaint is installed.

On 10/24/2022, in procedure AT/04570/2022, the complaint is forwarded to B.B.B. (responsible for the surveillance system according to the complainant).

On 12/05/2022 (REGAGE22e00055583132), B.B.B. responds with ***NIF.1 with the following documents:

- Buofax_ca__769_maras_AEPD2.pdf (hereinafter, Doc_1.1)

- Annex_1_Contrato_Spanish_Pharmaceutical.pdf (hereinafter, Doc_1.2)

- Annex_2y3_Camaras_y_Carteles_y_Visualizacin_por_aplicacin.pdf (hereinafter, Doc_1.3)

- Annex_4_Certificado_CCPP.pdf (hereinafter, Doc_1.4)

On 12/13/2022, following the information provided previously, the complaint is forwarded again to

SPANISH PHARMACEUTICAL SL in similar terms to those previously made to B.B.B.

On 01/19/2023 (REGAGE23e00003730175), DELSA ALQUILERES S.L. responds (the request was sent to Spanish Pharmaceutical S.L., but in the electronic entry register, the sender appears as DELSA ALQUILERES S.L.) with the following documents:

- Burofax_2_ca__769_maras_AEPD2.pdf (hereinafter, Doc_2.1)
- Annex_2_Camaras_y_Carteles.pdf (hereinafter, Doc_2.2)
- Annex_3_Visualizacion_de_las_mismas_por_aplicacion.pdf (hereinafter, Doc_2.3)
- Annex_4_Certificado_CCPP.pdf (hereinafter, Doc_2.4)

RESULT OF THE INVESTIGATIVE ACTIONS

Analysis of the documentation received in response to the forwarding:

Doc_1.1 (REGAGE22e00055583132) is a response letter to the forwarding signed by "B.B.B." in which they state that:

- they are neither the owner nor make use of the property because it is "leased to the company SPANISH PHARMACEUTICAL SL since 05/01/2019"

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- The operating company and responsible for the property and its video surveillance is "SPANISH PHARMACEUTICAL SL, with CIF B93313708".
- There are a total of 2 cameras installed.
- There is a sign that warns of the existence of a video-surveilled area.
- Attached is a "responsible declaration indicating that the cameras are currently connected to the electrical network with visualization and are not recording at this moment, therefore they are not fully operational".

Doc_1.2 (REGAGE22e00055583132) is a copy of a lease contract for the operation of apartments signed by B.B.B. with ***NIF.1, on behalf of DELSA PATRIMONIAL MANAGEMENT GROUP SL, with NIF B92644871, as the assignor, and C.C.C. with ***NIF.2, representing the company SPANISH PHARMACEUTICAL SL, with NIF B93178846 as the assignee, by which on 01/05/2019 they agree to the assignment for 3 years, starting from 22/09/2019, automatically renewable annually. This document does not include the list of properties.

Doc_1.3 (REGAGE22e00055583132) is a 7-page document in which the text "Responsible Holder: SPANISH PHARMACEUTICAL SL" appears, along with images of the location of two video surveillance cameras, the hallway in which they are located, and the signs placed in the hallways (pages 1 to 4), and the images captured by the cameras (pages 5 to 7). On pages 1 to 3 of the document, the text "Privative hallway for the exclusive use and passage of the tenant or holder of the doors of property A, B, and C which is unique" appears, and on pages 5 to 7 the text "In the images ONLY the PRIVATIVE hallway is visible, not the community area".

With the photographs and images provided in Doc_1.3, approximate sketches of the areas shown in the images from the cameras and the location of the cameras and signs are prepared.

Doc_1.4 (REGAGE22e00055583132) is a certificate signed by D.D.D. with ***NIF.3, in his capacity as administrator of the Community of Owners, indicating that "the camera installed by Delsa Patrimonial Management Group S.L., owner of the apartments located on the first floor of this building, is currently not in the common areas, but in a completely private area of this owner".

Doc_2.1 (REGAGE23e00003730175) is a response letter with the signature footer "Spanish Pharmaceutical SL" in which it is stated that:

- "It is our company to which you are addressing, SPANISH PHARMACEUTICAL SL, with CIF B93313708, the operating company and responsible for the property and its video surveillance".
- There are a total of 2 cameras installed.
- Attached is a photograph of the sign that warns of the existence of a video-surveilled area.
- Attached is a "responsible declaration indicating that the cameras are currently connected to the

electrical network with visualization and are not recording at this moment, therefore they are not fully operational”.

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- and that it attaches a “certificate from the Community Administrator indicating that the cameras are located in private areas and therefore do not require consent from the co-owners for their installation”. The signature footer that appears on this letter is “Spanish Pharmaceutical S.L.” and in the text of the letter, it indicates that its NIF is B93313708. However, in the electronic entry register, the sender appears as DELSA ALQUILERES S.L. with NIF B93178846.

Doc_2.2 (REGAGE23e00003730175) is a 4-page document that corresponds to pages 1 to 4 of document Doc_1.3 sent by B.B.B. on 05/12/2022.

Doc_2.3 (REGAGE23e00003730175) is a 3-page document that corresponds to pages 5 to 7 of document Doc_1.3 sent by B.B.B. on 05/12/2022.

Doc_2.4 (REGAGE23e00003730175) is identical to Doc_1.4 sent by B.B.B. on 05/12/2022.

Consultation in the cadastral and commercial information systems, and the AEAT:

The website of the cadastre www1.sedecatastro.gob.es is consulted, from which it results that the cadastral reference of the property where the cameras are located (first floor of ***DIRECCION.1) is ***REFERENCIA.1. The owner of the property is DELSA PATRIMONIAL MANAGEMENT GROUP SL, with NIF B92644871 (the document is incorporated into the case management system).

Consultations are made to the Central Commercial Registry and at www.axesor.es, from which it results that:

- The NIF B92644871 corresponds to DELSA PATRIMONIAL MANAGEMENT GROUP S.L. and its administrator since 30/09/2009 is B.B.B. with ***NIF.1.
- The NIF B93178846 corresponds to DELSA ALQUILERES SL and its administrator since 23/07/2015 is B.B.B. with ***NIF.1, having until 19/09/2019 the corporate name SPANISH PHARMACEUTICAL S.L.

NIF consultations are sent to the AEAT, which provides the following information (the response documents are incorporated into the case management system):

- The NIF B92644871 corresponds to DELSA PATRIMONIAL MANAGEMENT GROUP S.L.
- The NIF B93178846 corresponds to DELSA ALQUILERES S.L.
- There is no information on SPANISH PHARMACEUTICAL S.L.

Additionally, a consultation is made at www.axesor.es regarding the commercial information on the NIF B93313708, mentioned as corresponding to SPANISH PHARMACEUTICAL S.L. by B.B.B. in Doc_1.1 and by DELSA ALQUILERES S.L. (signing as SPANISH PHARMACEUTICAL S.L.) in Doc_2.1. The consultation results show that:

- The NIF B93313708 belongs to KESFAC RESTAURACION S.L., whose sole partner is GLOPHARMEDIS S.L.

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GLOPHARMEDIS S.L. has three partners (PARAFARMACIA LOS BOLICHES S.L., MARESAM RESTAURACION S.L., and KESFAC RESTAURACION S.L.), all of which have GLOPHARMEDIS S.L. as their sole partner.

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These four companies have B.B.B. as their sole administrator.

Information requests to the participants:

On 13/03/2023, a request was sent to the administrator of the community of property owners of the estate, D.D.D., to detail the certified information in Doc_1.4 (same as Doc_2.4).

On 28/03/2023, D.D.D. responded (REGAGE23e00023914566), with the document CONCHACARTA2303PROTECCIONDATOS_FDO.pdf (hereinafter, Doc_3).

Doc_3 (REGAGE23e00023914566) is a letter in which the administrator of the community of property owners states:

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“the camera in question is located on the first floor, on that floor there are currently three homes, and all the homes are owned by the respondent, which we understand is DELSA PATRIMONIAL MG, S.L.”

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“Initially there was a single property on the first floor and later the owner undertook some works and divided that property into 3 homes. One of the homes still has the same access as the premises through the stairs and the landing of the building, which was and is a common area, but to access the other two homes, the owner had to create a new hallway, enabling part of the square meters of the initial property for an open access hallway, so that new hallway that provides access to the other two homes is private, because the square meters of the hallway actually belong to the initial property, although its use is open to anyone who accesses it.”

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“As we indicated in the previous point, any person who accesses the stairs can pass through that hallway.”

On 04/04/2023, new requests were sent:

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to the administrator of the community of property owners to expand the information related to the surveillance cameras, including the image and the corresponding sketch for “Camera 2”

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to DELSA ALQUILERES S.L. to describe the surveillance system

On 05/04/2023, a request was sent to B.B.B., to provide a copy of Annex I of the lease contract referred to above as Doc_1.2.

On 13/04/2023, D.D.D. responded (REGAGE23e00023914566) with the document CONCHACARTA2303PROTECCIONDATOS2_FDO.pdf (hereinafter, Doc_4).

Doc_4 (REGAGE23e00023914566) is a letter in which the administrator of the community of property owners indicates that the area appearing in the upper central part of the image captured by Camera 2 coincides with that represented in front of C/ Jorge Juan, 6 and corresponds to a common area of the building, specifically to the landing of the stairs on the first floor.

On 17/04/2023, DELSA ALQUILERES responded with NIF B93178846, with three entries by registry, both to the request made on 04/04/2023 to DELSA ALQUILERES S.L. and to the one made on 05/04/2023 to B.B.B. It provided the documents:

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AEPD_3.pdf (REGAGE23e00024631185), hereinafter Doc_5.

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AEPD_4.pdf (REGAGE23e00024632628), hereinafter Doc_6.

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Anexo_1_Contrato_Arrendamiento.pdf (REGAGE23e00024631471), hereinafter Doc_7.

Doc_5 (REGAGE23e00024631185) is a letter signed by “Spanish Pharmaceutical S.L.” in which it responds, regarding the surveillance system, that “it is not viewed permanently and only if necessary for security, using the Hik-Connect program for that purpose.”

Doc_6 (REGAGE23e00024632628) is a letter indicating that “although B.B.B. is not the owner of the property or the contract, we provide you with the annex 1 requested in the quality it deserves.”

Doc_7 (REGAGE23e00024631471) is the list of properties in which the property involved in the claim appears, and which was not included in Doc_1.2.

On 19/04/2023, a request was sent to DELSA PATRIMONIAL MANAGEMENT GROUP S.L. to identify the current person responsible for the surveillance system.

On 03/05/2023, DELSA PATRIMONIAL MANAGEMENT GROUP S.L. responded to the previous

request with NIF B92644871 (REGAGE23e00028422473) with the following documents:

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AEPD_DPMG (hereinafter, Doc_8.1).

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20191028_Contrato_arrendamiento_industria_apartamentos_DELSA_PMG.pdf (hereinafter, Doc_8.2).
Doc_8.1 (REGAGE23e00028422473) is a letter signed by "Delsa Patrimonial SL," in which it explains that:

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"The company addressed is only the owner of the property, but neither has it because it is leased nor does it have possession."

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"The owner of the property has not installed any surveillance camera, and therefore it will be the tenant or occupant who has arranged for that purpose."

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"As requested, we provide you with the annex 1 required in your writing in the quality it deserves."
Doc_8.2 (REGAGE23e00028422473) is the same lease contract for the operation of apartments as Doc_1.2, incorporating at the end a copy of the payment of a registration fee from the Junta de Andalucía.

Additional information about the surveillance system:

The website of the system referred to by DELSA ALQUILERES S.L. in Doc_5 as the one used for viewing the images captured by the surveillance system was consulted, and the file Hik-Connect Mobile Client_Datasheet_5.0.pdf was downloaded.

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from

https://pinfo.hikvision.com/hkwsen/unzip/20221214153448_44232_doc/Hik-Connect%20Mobile%20Client_Datasheet_5.0.pdf (the document is incorporated into the file management system, hereinafter Doc_9).

Doc_9 is the datasheet for the video surveillance system. It indicates that:

- The orientation and zoom can be modified through the app (PTZ cameras).
- The system allows for the storage of images and videos for later consultation.

Determination of the responsibility of the video surveillance system:

The information from the land registry and the administrator of the homeowners' association identifies DELSA PATRIMONIAL MANAGEMENT GROUP S.L. as the owner of the property where the cameras are located.

B.B.B. states (Doc_1.1, Doc_1.3) that the entity responsible for the property and the video surveillance system is SPANISH PHARMACEUTICAL S.L., and sends Doc_1.2 (clauses of the lease agreement for the rental of apartments signed on 01/05/2019 between DELSA PATRIMONIAL MANAGEMENT GROUP S.L. and SPANISH PHARMACEUTICAL S.L. for a duration of three years starting from 22/09/2019 with automatic annual renewal).

DELSA ALQUILERES S.L. also states (Doc_2.1, Doc_2.3, Doc_2.4, Doc_5) that the entity responsible for the property and the video surveillance system is SPANISH PHARMACEUTICAL S.L., and sends the list of properties (Doc_7) corresponding to Doc_1.2, which includes the property where the cameras are located in the hallway.

DELSA PATRIMONIAL MANAGEMENT GROUP S.L. indicates in Doc_8.1 that "it would be the tenant or occupant who has arranged for this purpose," and sends Doc_8.2, the same contract sent in Doc_1.2 by B.B.B.

The company SPANISH PHARMACEUTICAL S.L. changed its corporate name to DELSA ALQUILERES S.L. on 19/09/2019.

Therefore, it is established that DELSA ALQUILERES S.L. with NIF B93178846 is responsible for the video surveillance system.

Determination of the nature of the area covered by the cameras:

There are two cameras installed, but only one of them is visible from the landing of the staircase; the hallway where the cameras are installed is private property, but at one of its ends, it opens to the landing of the first-floor staircase (Doc_1.3, Doc_2.2, Doc_2.3, Doc_3, sketch).

The so-called "Camera 1" captures images of the private hallway but not of common areas.

The so-called "Camera 2" captures images of both private areas (part of the hallway) and common areas (part of the landing of the first-floor staircase).

This is corroborated by the administrator of the homeowners' association, who identifies the central upper area of the images captured by "Camera 2" as part of the landing of the first-floor staircase (Doc_4).

The orientation and zoom level of the cameras can be modified from the user terminal (Hik-Connect system from Hikvision), so given their position, "Camera 2" could capture a larger area of the common parts of the building (Doc_9).

Determination of the use of the images captured by the cameras:

According to the statements of DELSA ALQUILERES S.L. (Doc_5), the video surveillance system "is not viewed permanently and only in case it is necessary for security, using the Hik-Connect program for this purpose."

However, the technical sheet of the system indicates that the system used (Hik-Connect system from Hikvision) has the capability to store images and videos for later consultation (Doc_9).

Determination of the signage of the video surveillance system:

The warning signs for the video surveillance area do not contain any reference to the entity responsible for capturing the images, and anyone wishing to read them would be previously captured by the two installed cameras (Doc_1.3, Doc_2.2, sketch).

Comments on the participants:

B.B.B., being himself the administrator and sole partner of DELSA PATRIMONIAL MANAGEMENT GROUP S.L. and DELSA ALQUILERES S.L. (formerly SPANISH PHARMACEUTICAL S.L.), has provided the lease agreement, information about the video surveillance system, images from the cameras, and photographs of their location. However, he has repeatedly provided incorrect information (corporate name and NIF) regarding the ownership of the company responsible for the video surveillance system (Doc_1.1, Doc_1.3, Doc_2.2, Doc_2.3, Doc_5).

The video surveillance system has been installed without the consent of the homeowners' association (Doc_1.1, Doc_2.1).

CONCLUSIONS

The property where the cameras are located is owned by DELSA PATRIMONIAL MANAGEMENT GROUP S.L.

The entity responsible for the video surveillance system is DELSA ALQUILERES S.L. with NIF B93178846 (DELSA ALQUILERES S.L. is the current corporate name of SPANISH PHARMACEUTICAL S.L.), by virtue of a lease agreement for the rental of apartments signed at the time between DELSA PATRIMONIAL.

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MANAGEMENT GROUP S.L. and SPANISH PHARMACEUTICAL S.L., effective as of 22/09/2019 for a period of three years, automatically renewable annually.

B.B.B. is the sole administrator and partner of the company that owns the property (DELSA PATRIMONIAL MANAGEMENT GROUP S.L.) and also of the company that leases it (DELSA ALQUILERES S.L.). He has provided the lease agreement, information about the video surveillance system, images from the cameras, and photographs of its location. However, he has repeatedly provided incorrect information (providing the previous corporate name and incorrect NIF) regarding the company responsible for the video surveillance system.

The video surveillance system has been installed without the consent of the homeowners' association.

The video surveillance system captures common areas of the building, currently part of the landing on the first floor; the system used (Hik-Connect) allows remote modification of both the orientation and zoom level of the cameras, and can store images and videos for later consultation.

The warning signs for the video surveillance area do not contain any reference to the entity responsible for capturing the images, and anyone wishing to read them would be captured by the two installed cameras beforehand.

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FIFTH: On July 14, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6 of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: On 10/08/23, a written statement of allegations from the respondent was received in the following terms:

FIRST. Responsibility for the alleged cameras in private areas:

The acting official explains in detail each of the actions and investigations carried out on their part, attempting to attribute to the complainant an intention to confuse the documentation provided in the procedure. What the official does not understand is that the submission of documents by a third party is completely permitted by current legislation, and therefore the signature appearing on the document submission is irrelevant, as it is the documentation provided in the file that is clear, truthful, and real. For all these reasons, and despite the extensive investigation carried out by the official, more in line with that of an instructor in a criminal procedure rather than an administrative process, it concludes nothing different from what was provided in the documentation voluntarily submitted by this party, thus there is no attempt at confusion as can be inferred from the Agreement to Initiate Sanctioning Proceedings (...)

SECOND. Cause of Defenselessness.

The acting official initiates all facts based on a complaint from someone who claims to be a neighbor of the building without having communicated with said neighbors and without this party being aware of a neighbor by that name (...).

THIRD. Reversal of the Burden of Proof.

The acting official expressly recognizes as true the facts presented by the complainant or the property administrator without these having a 'principle of veracity' as they are not officials or agents of the authority, thus reversing the burden of proof for that reason. This party does not have the documents provided by them that would demonstrate what both have stated.

Moreover, according to the records, there has been no visit to the site by a public official to verify the facts, but rather it is based on mere statements from the complainant – who is a party – and from the Community administrator who can hardly know what is visible through the alleged cameras that are also not fully operational, as already sworn by this party.

For all the above, the evidence must be considered null in full right, and it must be the public officials who verify the facts stated by the parties and question each point of the facts stated by the respondent, giving total veracity to those stated by the others.

That they are exclusively in private areas and not community areas. THE CAMERAS ARE EXCLUSIVELY LOCATED IN PRIVATE AREAS AND NOT COMMON AREAS, as demonstrated by the photographs provided by this party and the same certificate from the Administrator. The sketches made are not conclusive evidence and, moreover, do not correspond to the physical reality of the place since in no case can the camera even focus on a person in the common areas. Even considering the sketch made by a third party, it is observed that there can be no recording in common areas since shoes do not imply an image of the user in the common areas.

The identification plate at the entrance of the Private Area is established by law and perfectly identifies who the responsible company is, without this being necessary because, as has been stated repeatedly, THERE IS NO RECORDING WHATSOEVER.

SEVENTH: On 24/01/24, a was issued in which it was considered that the respondent entity did not have legal backing for the installation of the system despite the statements made, as well as that the

informational signs presented "irregularities," considering the infringement of Articles 6 and 13 of the GDPR to be established, proposing a sanction of €1000 (€500 + €500) based on the established facts.

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EIGHTH: On the date, a written statement of allegations from the responding party is received, in which it argues the following:

FIRST. Expiration. In the present case, the claim dated October 20, 2022, submitted by the Spanish Agency for Data Protection is analyzed, at which time the said public body became aware of the facts, exceeding the established period of 12 months today, thus corresponding to EXPIRATION and, consequently, the FILING of the proceedings (...).

SECOND. - Responsibility of the alleged cameras in private areas.

As a result of the investigative actions, it is mentioned that "the warning signs for video surveillance do not contain any reference to the person responsible for capturing the images, and anyone who wishes to read them would be previously captured by the two cameras," clarifying that this party states that the signs referred to are properly filled out with the entity's details and are distributed throughout different areas of the building so that the members of the community are fully informed, making it a false accusation by the official.

Documents No. 1 and No. 2 are attached as warning signs with the necessary references.

THIRD. - As reiterated in the written statement from the Spanish Agency for Data Protection that the video surveillance system has been implemented without the consent of the homeowners' community, this party wishes to clarify that there IS authorization from ALL the neighbors of the CCPP, having expressed it in writing (email), and they have even requested that the camera located in the private hallway be moved to the common areas. Moreover, the law does not require a record but merely the approval of 3/5 of the neighbors; in this case, there is UNANIMITY.

FOURTH. - Cause of Defenselessness. It is necessary to clarify again that the acting official initiates all actions based on a complaint from someone who claims to be a neighbor of the building without having communicated this to said neighbors and without this party being aware of a neighbor by that name. The official has also not communicated the complaint, and therefore it has not been possible to verify that the complaint is true and contains accurate and verified information, causing clear defenselessness to this party. Furthermore, we do not have confirmation that this neighbor is who she claims to be, nor is there a simple note or lease contract from the complainant in the proceedings that would demonstrate her capacity to report what she has stated, as in the case of a contract we would be facing, at the very least, a lack of active legitimacy.

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FIFTH. - Burden of Proof. It has already been clarified previously that the acting official expressly recognizes as true the facts presented by the complainant or the property administrator without these having a 'principle of veracity' since they are not officials or agents of authority, thus reversing the burden of proof. This party does not have the documents provided by them that would demonstrate what both have stated. At the time, it was not recorded in the proceedings that there had been a visit to the site by a public official to verify the facts; rather, it was based on mere statements from the complainant – who is a party – and from the Community administrator, who can hardly know what is being viewed by the alleged cameras that are also not fully operational, as already stated under oath by this party.

Therefore, this party has provided sufficient documentation to clarify the facts, and the acting official has accepted facts as true based solely on the statements of the parties without having visited the

facilities to ensure the veracity of the facts and act accordingly.

I REQUEST that you kindly accept this written statement and, in accordance with the above, proceed to FILE THE SANCTIONING FILE EXP202211229, agreeing to annul the proposed sanction."

From the actions taken in the present procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 20/10/22, through which the presence of video surveillance cameras affecting common areas is reported without being duly authorized by the homeowners' community and without the necessary informative signage.

Second. It is established that the main responsible party for the installation of the video surveillance cameras is DELSA ALQUILERES S.L., which does not deny the installation of the cameras.

Third. It is established that the installed cameras partially affect common areas, without the authorized backing of the Board of homeowners, with no documents provided to that effect.

Fourth. It is established from the photographs submitted to this Agency that the informative signs are not filled out in their informative sections (e.g., responsible party, purpose, or method of exercising rights under the current GDPR) at the time the facts occurred.

LEGAL GROUNDS

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registration actions; and by which Organic Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to this procedure.

"The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived."

II

Before addressing the substance of the matter, it is appropriate to consider the various "arguments" made by the respondent in their letter dated 16/02/24, in which they first request the expiration of the procedure.

It is worth recalling that the Initiation Agreement was signed on 14/07/23, so this date should be considered as the initial timestamp for determining the expiration of the procedure, and not the date determined by the respondent, which would be for determining a presumed prescription of the infringement(s) committed.

Expiration within the administrative procedure can be defined as the passage of time that the Administration has to issue and notify the appropriate administrative resolution without having done so. In the Initiation Agreement itself, duly notified to the respondent, the indicated aspect is included with the following wording:

The procedure shall have a maximum duration of twelve months from the date of the initiation

agreement. After this period, it shall expire, and consequently, the proceedings shall be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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Therefore, the respondent's claim regarding a presumed expiration of the procedure must be dismissed.

Secondly, regarding the informational signage installed, it should be noted that in the initial allegations to this Agency, no photograph with date and time was provided to prove that the sign(s) installed were complete in their essential sections (e.g., data controller, purpose, etc.), and the subsequent documentary submission made with the now complete signs in their essential sections is not accepted as valid.

Thus, the respondent's claim regarding the correct installation of the informational signs must be dismissed, as it was modified significantly after the Initiation Agreement duly notified by this agency.

Thirdly, regarding the , the respondent claims that "they have the authorization of all the neighbors, having expressed it in writing via email."

On this aspect, it should be noted that the authorization must be recorded in the corresponding Minutes of the ordinary (extraordinary) Meeting as an Agenda Item that must be submitted for authorization and explanation to the group of attending property owners.

The Minutes of the Meeting of property owners have probative value regarding the agreements adopted, with the specific formalities and necessary backing to certify what is recorded therein.

From the perspective of data protection, it is the responsibility of the data controller, in this case, the person who installed the system, to prove that they have all the documentation regarding the legality of the system.

The purported set of emails to a series of neighbors informing them of their presence in common areas cannot be considered valid documentation for this agency, without prejudice to any considerations that may exist in other branches of law regarding whether such an act could constitute a presumed "agreement" regarding the Community of property owners.

The presence of the camera(s) in the indicated locations implies an impact on common areas, processing data of third parties, regardless of the informational emails sent to the group of property owners of the building, as they are operational, without the indicated backing for the mentioned processing.

Therefore, reiterating what has already been extensively reasoned in the proposal phase, the claim for the validity of the aforementioned emails as proof of informed and legal consent regarding the installation of the video surveillance system must also be dismissed.

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III

In the present case, we proceed to analyze the claim dated 20/10/22 through which the "presence of camera(s) directed towards common areas" is reported as not being properly signposted and affecting the rights of third parties who feel intimidated by it.

The installation of cameras in Communities of Owners must be authorized by the owners, with such agreement recorded in the corresponding Minutes where this possibility is expressly stated.

For the installation of surveillance services in a community of owners, the votes in favor of 3/5 of the total owners are required, who must also represent at least 3/5 of the participation quotas.

It is necessary to remember that individuals with such devices are affecting common areas "processing data of third parties" who feel intimidated by the presence of these types of devices, regardless of the

consequences that the alteration of community elements may have within the framework of the current LPH.

That is to say, common areas are all those elements that are part of the property but whose use we share with the rest of the neighbors, as they are part of the Community and not exclusive to each dwelling.

Ignorance of the law does not exempt compliance, so neighbors (owners) cannot claim their lack of knowledge to misuse the facilities.

Article 6 of the GDPR (Regulation EU 679/2016, April 27) states:

The processing shall be lawful only if at least one of the following conditions is met:

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

It is worth noting that the installation of video surveillance cameras is an exceptional measure, such that if there are less invasive measures for the protection of the property (e.g., security door, sound alarm, etc.), these should be chosen instead of proceeding to install cameras that also affect common areas without the informed consent of all the owners of the property.

The first requirement for the processing of personal data to be lawful is that it has a legitimate basis.

Therefore, it is considered that the respondent does not have a legitimate basis to proceed with the installation of the device(s) for capturing images in community areas, being an initially disproportionate measure, which entails the imposition of a violation of the current Article 6 of the GDPR.

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IV

In accordance with the evidence available in this sanctioning procedure, it is considered that the respondent has proceeded to install a series of video surveillance camera(s) on a community wall without having properly formatted informational signage indicating that it is a or indicating, where applicable, the purpose and the controller of the processing.

Furthermore, the identification of the legal basis is essential to be able to demonstrate compliance with the provisions of the GDPR.

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall prescribe after three years" and in particular the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.

The known facts constitute an infringement attributable to the respondent for violating the content of Article 6 of the GDPR, as previously mentioned.

V

From the allegations and evidence provided, it is not established that the signs installed in the vicinity of the doors of the apartments indicate the controller of the processing or the way to exercise rights under the current data protection regulations.

It should be noted that mere viewing of images (not recording) is considered, according to the consolidated criteria of this agency, as it affects an identified or identifiable natural person, which requires the installation of the required information about the Video-surveilled Area in a visible location.

Article 22, paragraph 4 of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informational device."

The aforementioned facts imply an infringement of the content of Article 13 of the GDPR, as there are no informational sign(s) with an effective address to which one could direct or indicate, where

applicable, the main controller of the data processing.

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Article 13 of the GDPR “Information to be provided when personal data is obtained from the data subject”

1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements “shall expire after three years” and in particular the following:

h) The failure to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

VI

Article 83.5 of the GDPR states the following: “Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

- a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).
- b) The rights of data subjects under Articles 12 to 22 (...).

In determining the sanction, it is taken into account that various devices affecting common areas of the property have been installed, processing an indeterminate number of personal data, which has not been communicated to the main governing bodies of the Community, not even informally, which could disproportionately affect their privacy, considering the conduct as gross negligence, which justifies a sanction of €1,000 (€500 + €500), a sanction situated at the lower end of the scale for such conduct, based on the two infringements analyzed by this body.

VII

The text of the resolution establishes what the infringements committed were and the facts that led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

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Given that during the processing of the current procedure, signs informing that it is a have been repositioned, no measures shall be imposed regarding this aspect, as it has been corrected after the notification of the Agreement to Initiate.

It is noted that failure to comply with any possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the

provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the entity DELSA ALQUILERES, S.L., with NIF B93178846, for an infringement of Article 6 of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €1,000.00 (€500 + €500).

SECOND: TO ORDER the entity DELSA ALQUILERES, S.L., with NIF B93178846, that pursuant to Article 58.2.d) of the GDPR, within ONE MONTH from the date this resolution becomes final and enforceable, to prove compliance with the following measures:

- Obtain the legally valid consent of the Community of property owners by providing the necessary documentation for this purpose.
- Prove the temporary suspension of the system to cease obtaining images until there is a valid legal basis.

THIRD: TO NOTIFY this resolution to the entity DELSA ALQUILERES, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receiving the notification and once it becomes executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested

party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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